

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Farai Williams,

Plaintiff,

— against —

City of New York, Berson Hyppolite and John
Does ##1-5,

Defendants.

Index No.

SUMMONS

JURY TRIAL DEMANDED

To the above-named Defendants: You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis of venue is the location where the claims arose.

TO:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street New York,
New York 10007

BERSON HYPPOLITE
70th Precinct
154 Lawrence Ave,
Brooklyn, NY 11230

Dated: January 27, 2023
New York, NY

WERTHEIMER LLC

By: 

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COMPLAINT

JURY TRIAL DEMANDED

PARTIES

1. Plaintiff Farai Williams is a resident of New York City.
2. Defendant Berson Hyppolite is a New York City Police Officer in the 70th Precinct.
3. John Does #1-#5 are New York City police officers who work in the 19th Precinct.
4. Defendant City of New York is a municipal corporation in the State of New York.

JURISDICTION AND VENUE

5. This action arises under 42 U.S.C. §§ 1983 and 1988 in addition to the laws of the City of New York.
6. Jurisdiction lies in this Court over claims against employees of the New York City Police Department under its federal question and civil rights jurisdiction, 28 U.S.C. §§ 1331 and 1343.

7. Jurisdiction also exists over City law claims against the Defendants under 28 U.S.C. § 1367.

8. Venue is proper in this Court under 28 U.S.C. § 1391 because Plaintiff's claims arose within the Southern District of New York.

FACTS

9. Farai Williams was sitting on his electric bicycle on a sidewalk outside of a deli on the corner of Flatbush and Clarendon in Brooklyn, NY on the night of October 12, 2022.

10. He was not moving on his electric bicycle when they approached him.

11. Officer Hyppolite and another officer approached him and asked for his identification, claiming he was riding his bicycle on the sidewalk.

12. He informed the officers he did not have his identification and gave them his name instead.

13. The officers ran his name in their system and Mr. Williams had two warrants: one for failure to show a fishing permit and one for keeping an undersized fish.

14. An illegitimate stop and two warrants for fishing ultimately led to debilitating hand injuries for Plaintiff.

15. Officer Hyppolite put him in overly tight handcuffs and put him in the police vehicle, taking him to the 70th Precinct.

16. The officers also took his e-bike and he has been able to get it back.

17. Despite repeated protestations about the overly tight handcuffs, the officers ignored him.

18. He also told the officers he thought his finger might be broken. He was eventually taken to the hospital, though not taken out of cuffs.

19. The next morning, he was taken before a judge for the warrants. The judge and courtroom laughed at the warrants and threw the warrants out.

20. To this day, he has numbness in his hands, significant scarring, and is unable to fully bend his hands.

21. Mr. Williams does physical labor for work, which is affected by the

22. Overly tight handcuffs are known to cause nerve damage because nerves in the wrist track in compartments that are sensitive to pressure and damage.

23. Handcuff-related injury to the most commonly affected nerve, the superficial radial, can be severe and permanent.

24. Overly tight handcuffs are an ongoing violation of the Fourth Amendment as once the arrested person is secured, force beyond that needed to maintain the seizure is inherently gratuitous and unreasonable.

25. Officers could place a second pair of double locked handcuffs on the arrested individual and remove the first pair without any flight risk.

26. Mr. Martinez still has scarring on his wrists from the excess tightness of the handcuffs.

27. He is seeing a hand specialist because of the pain and numbness in his wrists.

28. The injuries may require surgery.

29. Injuries to the wrists frequently degenerate over time as a result of the scar tissue surrounding the narrow nerve cavities.

FIRST CLAIM FOR RELIEF

Excessive Force/Assault and Battery

Under New York City Law Administrative Code § 8-801

Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

30. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

31. Defendants used force against Plaintiff that was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

32. The types and levels of force Defendants used against Plaintiff were unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

33. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

34. Under New York City Law Administrative Code § 8-801 *et seq.* the City of New York is responsible for the actions of its officers and qualified immunity is not a defense to such force.

WHEREFORE, Plaintiff Farai Williams demands judgment against the
above-captioned Defendants as follows:

- a. For compensatory damages, jointly and severally, in an amount to be determined at trial, but not less than five hundred thousand dollars;
- b. For punitive damages, jointly and severally, in an amount to be determined at trial;
- c. For reasonable attorneys' fees, costs, and disbursements, under New York City Law;
- d. For pre- and post-judgment interest as allowed by law; and
- e. For such other relief as this Court deems just and proper.

Dated: New York, New York
January 27, 2023

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